



Andrew P <andrewjpigors@gmail.com>

Sewage leak. №2

1 message

Andrew P <andrewjpigors@gmail.com>

Mon, Mar 17, 2025 at 5:00 PM

To: "Shady Oaks Park MHP, LLC" <Shadyoaks@ourhomesofamerica.com>

Subject: URGENT: Follow-Up on Unresolved Sewage Leak Between Trailers 20 & 22

I am writing to follow up on the **ongoing sewage leak between Trailers 20 and 22**, which I previously reported to you. Despite bringing this to your attention, **the leak remains active, seeping from the ground, and poses a serious health and safety risk to residents.**

Failure to Address the Issue & Property Maintenance Obligations

Under Michigan law, landlords and property management companies are required to maintain habitable living conditions. **Allowing raw sewage to persist in a residential area is a clear violation of MCL 554.139**, which mandates that rental properties be kept in a safe and sanitary condition. Furthermore:

1. **Health & Environmental Hazards** – The standing sewage **creates unsanitary conditions** that can lead to **contamination, disease, and foul odors** affecting multiple residents.
2. **Structural Damage & Property Risk** – Continued exposure to sewage can damage the soil and surrounding infrastructure, creating potential liability for Shady Oaks.
3. **Legal & Regulatory Noncompliance** – The **City of Muskegon Water & Sewer Department, the Muskegon County Health Department, and the Michigan Department of Environment, Great Lakes, and Energy (EGLE)** have all been notified and may issue **citations, fines, or orders for immediate corrective action.**

Immediate Action Required

This issue has now been reported multiple times without proper resolution. As of today, the sewage continues to leak, affecting the health and well-being of residents. **I am formally requesting that you provide a written response confirming the following within 24 hours:**

1. **The date and time when a licensed plumber or sewage repair contractor will be on-site to address the issue.**
2. **A written plan of action detailing how the leak will be repaired and prevented from recurring.**
3. **Confirmation that you have contacted local authorities to assess the environmental and health risks associated with the leak.**

If Shady Oaks fails to take immediate corrective action, I will escalate this matter further by:

- ✓ Filing a **formal complaint with the Muskegon County Health Department** for hazardous living conditions.
- ✓ Reporting this **public health risk to the City of Muskegon Water & Sewer Department** for code violations.
- ✓ Filing a **complaint with Michigan's Housing Law Enforcement** regarding habitability violations.
- ✓ Seeking **legal remedies** for failure to maintain the property in a habitable condition under **MCL 554.139 and Michigan Tenant Law.**

This issue must be addressed immediately. Please provide a written response by **[insert deadline: date/time, 24 hours from when you send the email]**, detailing the **specific steps you will take to fix this problem.** I expect a clear commitment from Shady Oaks to **resolve this dangerous situation without further delay.**

Sincerely,

Andrew Pigors1977 Whitehall Road, Lot 17
Muskegon, MI 49445

3/18/25, 2:33 PM

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